

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SEAN EVANS,

Plaintiff,

-against-

CITY OF NEW YORK; LT. COLIN AUSTIN,
individually and in his official capacities; Police
Officer BRIAN CINTRON, (Shield No. 14743);
individually and in his official capacities and NYPD
Officers JOHN and JANE DOE 1 through 10,
individually and in their official capacities (the names
John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.
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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
OCTOBER 18, 2018

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
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TO: CITY OF NEW YORK; 100 Church Street, New York, New York 10007

LT. COLIN AUSTIN; Strategic Response Group 3; 397 Coney Island Ave Brooklyn NY 11218

Police Officer BRIAN CINTRON, (Shield No. 14743); 48th Precinct 450 Cross Bronx
Expressway, Bronx NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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PLAINTIFF SEAN EVANS, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF SEAN EVANS, is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants LT. COLIN AUSTIN, and Police Officer BRIAN CINTRON, (Shield No. 14743) and NYPD Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about October 20, 2015 at or around 8:00 PM, PLAINTIFF was lawfully in his home within the vicinity of 912 east 178th Street, Apt 3C, Bronx, NY.

9. Approximately six (6) unidentified New York City Police Officers, including defendant Defendant Lt. COLIN AUSTIN, and the DOE defendants, came to above mentioned location, where PLAINTIFF was residing at the time of the incident.

10. The officers came to residence, after responding to a call involving an incident that occurred approximately four (4) days prior to this incident.

11. Defendants entered PLAINTIFF'S bedroom while plaintiff was laying down in his bed, and demanded that PLAINTIFF come with defendants.

12. Unaware why defendants were in his bedroom, PLAINTIFF asked defendants what was going on.

13. Angered by PLAINTIFF'S questioning, Defendant AUSTIN told PLAINTIFF that he was going to shock him with a taser despite the fact that AUSTIN lacked any justification to do so.

14. Defendant AUSTIN then tased PLAINTIFF as he was getting up off of the bed and complying with AUSTIN's orders.

15. At the time this was happening PLAINTIFF's sister was at the doorway of the bedroom with two (2) unidentified officers.

16. PLAINTIFF was also surrounded by additional officers inside the confines of the bedroom.

17. The NYPD officers who were in the room and in the doorway who had the oppertunting to intervene to prevent this unlawful use of force but failed to do so.

18. After tasing PLAINTIFF, Defendant AUSTIN handcuffed PLAINTIFF.

19. After PLAINTIFF was handcuffed he was tased a second time by the defendant officers.

20. PLAINTIFF had temporary loss of consciousness, and suffered a great deal of pain.

21. PLAINTIFF was transported to the hospital to be treated for his injuries he suffered from the taser.

22. In order to justify use of excessive force, Defendants claimed that PLAINTIFF was resisting arrest. The allegations made by Defendants were false, and the defendants knew them to be false at the time the defendants made the allegations.

23. As a direct result of the Defendant's conduct, PLAINTIFF suffers from emotional, physical, mental trauma, mental anguish, shock, fear, pain, bodily injury, and anxiety.

24. PLAINTIFF received medical care to treat the injuries that he sustained as a result of this incident.

CLAIM ONE
STATE LAW
Assault and Battery

19. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

20. By the conduct, as described herein, DEFENDANTS are liable to PLAINTIFF for DEFENDANTS having assaulted and battered PLAINTIFF.

21. DEFENDANTS intentionally attempted or threatened to inflict injury on PLAINTIFF, with an apparent ability to cause harm, which created a reasonable apprehension of bodily harm and/or offensive contact.

22. DEFENDANTS created a reasonable apprehension of bodily harm and/or

offensive contact when he assaulted PLAINTIFF.

23. Moreover, DEFENDANTS intentionally touched, or applied force to PLAINTIFF in a harmful or offensive manner, and without the PLAINTIFF's consent.

24. DEFENDANTS assaulted and battered PLAINTIFF when they applied force to PLAINTIFF in the manner discussed herein.

25. DEFENDANTS CITY OF NEW YORK are responsible for their wrongdoing under the doctrine of respondeat superior.

26. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CLAIM TWO
STATE AND FEDERAL LAW
UNREASONABLE FORCE

19. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

20. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

21. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

CLAIM THREE
STATE AND FEDERAL LAW
FAILURE TO INTERVENE

22. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such

conduct, had a duty to intervene and prevent such conduct and failed to intervene.

Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

24. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CLAIM FOUR
FEDERAL LAW
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

25. PLAINTIFF repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

27. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City and the NYPD include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officers' arrest statistics;
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct.
- iv. fabricating evidence to justify use of force.

28. The foregoing customs, policies, usages, practices, procedures and rules of defendant City through the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

29. The foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

30. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF'S constitutional rights.

31. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF'S constitutional rights.

32. The acts complained of deprived the PLAINTIFF of the following constitutionally protected rights:

- a. To be free from the use of unreasonable force and
- d. To receive equal protection under the law.

33. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

DATED: New York, New York
October 18, 2018

_____/s/_____
Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for PLAINTIFF Quandel Smothers in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
October 18, 2018

_____/S/_____
Katherine E. Smith